

HOUSE No. 1399

The Commonwealth of Massachusetts

PRESENTED BY:

Alice Hanlon Peisch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to an individual Medicare marketplace option.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alice Hanlon Peisch</i>	<i>14th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 1399

By Representative Peisch of Wellesley, a petition (accompanied by bill, House, No. 1399) of Alice Hanlon Peisch relative to providing for an individual Medicare marketplace option. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1234 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to an individual Medicare marketplace option.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 25 of chapter 32B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following subsection:-

3 “(a) For the purposes of this chapter, health reimbursement arrangements shall satisfy the
4 group insurance requirements to eligible retired employees as defined in section 1 and their
5 Medicare eligible dependents and permit said employees and their Medicare eligible dependents
6 to enter into a health insurance plan purchased on the individual Medicare marketplace. In lieu of
7 the premium cost sharing arrangement outlined in Section 2, minimum annual funding for such
8 health reimbursement arrangements of this chapter for each eligible retired employee and/or
9 dependent shall be established by adding 50% of the sum of the lowest cost Medicare

Supplement 1 plan filed in the Commonwealth by January 1 of the current calendar year plus the weighted average Part D premium in Region 2 for the prior calendar year.”

SECTION 2. Section 4 of chapter 32A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following subsection:-

“(a) Notwithstanding any general or special law or regulation to the contrary, Medicare eligible retired employees and their Medicare eligible dependents subject to the provisions of this chapter shall be permitted to enter into a health insurance plan purchased on the individual Medicare marketplace. In lieu of the premium cost sharing arrangement outlined in this chapter, minimum annual funding for such health reimbursement arrangements defined by section 25 of chapter 32B shall be established by adding “X%” of the sum of the lowest cost Medicare Supplement 1 plan filed in the Commonwealth by January 1 of the current calendar year plus the weighted average Part D premium in Region 2 for the prior calendar year, where “X%” equals the current premium cost sharing between the Commonwealth and eligible retirees.”